



November 25, 1998

Ms. Gabi Hoefler
Boulder County Health Department
3450 Broadway
Boulder, CO 80304

Dear Ms. Hoefler:

On Monday afternoon this week, you called to report a complaint from a neighbor, Ms. Mary Lou Dobbs, regarding dusty conditions at the plant starting on Thursday, November 19 and extending through Sunday, November 22. Since I had been out town during the time period in question, I did not have an explanation but committed to respond after an internal investigation. The specific complaint was about visible dust from the main stack, roads and general plant area. I called Ms. Dobbs that afternoon to seek additional information about the nature and timing of the complaint.

In the course of my investigation, I spoke with several production persons who were on duty during the time in question. I also reviewed computer records and daily logs. A summary of my investigation is listed below:

Thursday, November 19

Snow in plant and quarry.

Normal wind conditions, 3 to 11 MPH throughout the day.

No waterwagon due to the snow conditions.

No Cement Kiln Dust loading, hauling, or disposal.

Stack Opacity: Normal for most of the day until about 13:41. At that time opacity went from a normal reading of 7.8% up to 25.4%. It remained above 20% for a period of 15 minutes which is a reportable condition (was reported). Although the stack opacity dropped within permit limits at 13:56 it remained abnormally high until 18:00. There is no known cause for this excursion. Inspections of the baghouse did not reveal broken bags or stuck dampers which is the normal cause of opacity spikes. The only correlation in time was the startup of the Alkali Bypass fan. Although this may have been the cause, the mechanism is not understood since all gas moved by this fan is filtered through the baghouse. It is normal operation to run or shut down this fan depending on the product produced.

Friday, November 20

Wet conditions in the quarry after the Thursday snow.

No Cement Kiln Dust loading, hauling, or disposal.
Normal wind conditions, 3 to 11 MPH throughout the day.
No waterwagon due to the continuing wet conditions on roads and quarry.
Stack Opacity was within the normal or typical range all day, about 6 to 9%.

Saturday, November 21

Warm, Dry, Windy Day.
Waterwagon run from 9:00 am to 2:30 pm watering plant roads.
No Cement Kiln Dust loading, hauling, or disposal.
Wind conditions were gusty and strong during several periods of the day. There were more than 8 hours of the day when wind gusts were 15 to 40+ MPH. The quarry was shut down.
Stack Opacity was normal during the entire day.

Sunday, November 22

Warm, Dry Windy Day.
Waterwagon run from 8:00 am to 4:00 pm watering plant roads.
Wind conditions were gusty and strong from roughly 10:20 in the morning through midnight. The quarry was shut down.
No Cement Kiln Dust loading, hauling, or disposal.
Stack Opacity was normal during the entire day

Conclusions:

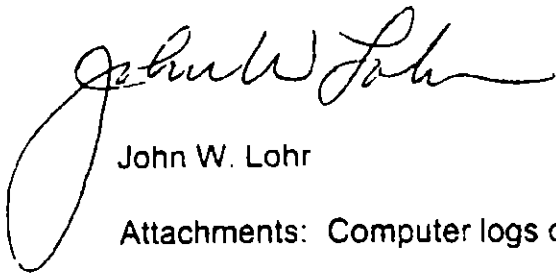
- First, because I was out of the area for the entire time, I do not have any first hand knowledge of weather or plant operating conditions.
- There was a high stack opacity for a period of time on 11/19 that relates to the complaint period. The precise mechanism of the high opacity is not known although it corresponds with the routine startup of a process fan.
- The windy conditions on 11/21 & 22 could have caused some dust in the plant and quarry in addition to areas surrounding Southdown's property.
- Plant employees took the prescribed actions in dealing with Thursday's opacity condition as well as the Saturday and Sunday high wind situation. The quarry did not operate, no CKD was handled, and the waterwagon was called in.
- Ms. Mary Lou Dobbs views the plant from the east side looking west. She indicated that there were problems throughout the time in question. One note is that any opacity appears to be significantly worse if viewed with the sun to the side or behind. Due to the time of year, with the sun low and to the south, most of the daylight hours will not provide an accurate means of evaluating opacity when viewing east to west. In fact any condition will be exaggerated due to the lighting conditions.★

★ how can reality be exaggerated?

I am concerned that a complaint occurred. We strive to be in compliance with all permit and control plan conditions. Our plant personnel are very sensitive to dusty conditions or any situation that may create dust. We are working rapidly to implement the improvements to our operation that have been committed. The new sweeper has been in service for about 2 weeks. We are in the engineering phase on our quarry watering project. Reclamation of the old quarry is proceeding on schedule. There will be instances when dusty conditions occur. We are doing all we know to do to minimize the frequency and the magnitude.

I apologize for any inconvenience that our operation may have caused. If you require additional information, please call.

Sincerely,

A handwritten signature in black ink, appearing to read "John W. Lohr". The signature is fluid and cursive, with a large loop at the beginning and a long, sweeping tail.

John W. Lohr

Attachments: Computer logs on opacity and wind speed for 11/19-22/98.

cc

Ms. Mary Lou Dobbs -- without attachments